Montgomery County District Court

Cause No. 2024-CV-0027

Emily Johnson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 15, 2024
Plaintiff's counsel:	Jeffrey Hayes, Villa & Dawson LLP

PARTIES

Plaintiff Emily Johnson is an individual residing in Texas who was injured in the motor vehicle collision described below. Defendant insurer is the automobile liability insurer that issued a policy covering the at-fault driver, and it may be served through its registered agent for service of process in Texas.

FACTS

On April 8, 2023, Plaintiff was lawfully operating a passenger vehicle on a public roadway in Katy, Texas, and had stopped at an intresection with a green signal. Plaintiff then began a left turn when the insured driver, traveling in the opposite direction, failed to yield the right-of-way and struck the front driver's side of Plaintiff's vehicle. The impact caused the airbags to deploy and forced Plaintiff's head against the side window and steering assembly. Plaintiff's vehicle sustained substantial damage and was towed from the scene. Responding officers prepared a crash report documenting the collision.

NEGLIGENCE

The insured driver owed Plaintiff a duty to exercise ordinary care, including the duty to yield the right-of-way to oncoming traffic when making a left turn across a path of travel and to keep a proper lookout. The insured driver breached that duty by turning or proceeding into Plaintiff's path when it was unsafe to do so, by failing to keep a proper lookout, and by failing to control speed. Under Texas law, the insured driver's negligence proximately caused the collision and Plaintiff's resulting injuries. Defendant insurer is liable to Plaintiff for the insured driver's negligence up to the limits of the applicable policy, and Plaintiff has presented a claim that Defendant has failed to resolve in good faith.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion with headaches, dizziness, light sensitivity, and cognitive difficulties. Pliantiff has incurred medical expenses for emergency care, imaging, neurological evaluation, and ongoing treatment, and will likely require future care. Plaintiff has also lost wages and earning capacity during time away from work and suffered physical pain, mental anguish, and impairment of quality of life. Plaintiff therefore seeks actual damages in the amount of $90,000.00, togehter with pre- and post-judgment interest, costs of court, and all other relief to which Plaintiff is entitled.